Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1142
Claimant:	Steven Mendoza
Adjuster:	Darin Tyler

04/11/2023 - Claim opened following report of a sideswipe collision during a lane change. Insured reports the other vehicle drifted into their lane on the highway. Insured vehicle sustained damage to the rear quarter panel and driver side mirror. No police report filed at scene; both drivers exchanged information. Claimant contacted the office by phone and confirmed she is not represented by an attorney. Initial coverage review in progress.

04/15/2023 - Recorded statement obtained from the insured driver. Insured states the other vehicle signaled but moved over before the signal was complete. Insured braked and steered right to reduce impact. Insured reports immediate neck stiffness and lower back soreness, and states they sought same-day evaluation at an urgent care facility. Photos of both vehicles uploaded to the file. Liability appears disputed at this stage.

04/23/2023 - Claimant reached by phone for injury update. Claimant reports ongoing neck pain rated as moderate, with stiffness when turning the head and lower back discomfort after sitting for long periods. Claimant has not yet returned for follow-up care. Advised claimant of the right to seek a repair estimate and to keep all treatment records. Claimant asked general questions about the claims process and was provided the standard information packet.

05/01/2023 - Medical records received from the urgent care provider. Diagnosis listed as cervical and lmubar strain, with a recommendation for physical therapy and over-the-counter pain relief. Records reviewed and added to the claim file. Follow-up with claimant scheduled to confirm whether physical therapy has begun. Reserve reviewed and adjusted to reflect current injury information.

05/09/2023 - Claimant confirmed she has started a course of physical therapy and expects to continue for several weeks. Repair estimate for the claimant's vehicle reviewed against the damage photos and found consistent with reported impact. Other driver's insurer contacted to discuss liability allocation; response pending. Claim remains open. Next review scheduled once therapy progress notes are received.

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Recorded Statement

Claim number:	C-1142
Statement of:	Steven Mendoza
Taken by:	Darin Tyler
Date:	04/08/2023

Q: Thanks for taking the time to speak with me today. This recorded statement is about the sideswipe collision you were involved in while changing lanes in Katy, Texas. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Please state where you were coming from and where you were headed when the collision happened.

A: I was driving home from work on the freeway. I had just moved from the right lane into the middle lane because traffic was slowing ahead of me.

Q: Did you check your mirrors and blind spot before changing lanes?

A: I checked my mirror, and I didn't see anyone right beside me. I galnced over my shoulder too, I think, but I'm not totally sure I looked long enough.

Q: What happened next?

A: The other car came up on my left side and clipped the rear quarter panel of my car. It pushed me toward the right and I had to correct the steering. My car spun a little but didn't roll over.

Q: Did you have any injuries at the scene?

A: I felt fine at first, just shaken up. But within a few hours my neck was really stiff, and by the next morning my lower back was sore and I had trouble turning my head to the left.

Q: Have you seen a doctor or received any treatment since the collision?

A: Yes, I went to urgent care the next day. They diagnosed a neck strain and a lower back strain and gave me muscle relaxers and a referral to physical therapy. I've been going to therapy twice a week.

Q: Is there anything else you'd like to add to your statement?

A: Only that I'm trying to get back to normal, and some days are harder than others. I want the claim handled fairly.

Q: Thank you. That concludes this recorded statement.